LIBRARY BRIEFING

HOUSE OF LORDS

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King's Speech 2026: Home affairs

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This briefing explores what announcements the government could make in the King's Speech on 13 May 2026 about home affairs.

Concerning criminal justice, the government has set out plans to legislate to comprehensively reform policing in England and Wales. It has also said it would modernise public order and hate crime legislation following an independent review; create new powers, modelled on counter-terrorism measures, to tackle the risks posed by hostile state actors; create a new offence, adapted from terrorism legislation, to deal with non-terrorist mass casualty attack planning; review the legal framework of domestic abuse to ensure it captures the experience of adolescents; conduct a review of stalking legislation; and make the collection of ethnicity data and nationality data mandatory for all suspects in child sexual abuse and criminal exploitation cases. In addition, the government may create a new legal framework for the use of facial recognition and biometrics technologies, introduce a registration scheme for sellers of knives, and take action to change the disclosure regime and to address issues with fraudulent advertising.

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On asylum and immigration, the government has announced a number of planned reforms, particularly to the asylum system, which it outlined in two policy documents. It has said it would make changes to the asylum appeals system, including creating a new independent body to hear appeals. The government has also explained that it plans to limit the application of article 8 of the European Convention on Human Rights on asylum and immigration cases; introduce new legislation on modern slavery to clarify obligations and address potential misuse while maintaining essential protections; introduce a levy on international student fees; and make changes to the rules for earning permanent settlement.

This briefing has been prepared to assist members of the House of Lords in the debates on the King's Speech. It draws upon material from the public domain and does not constitute official information about the government's intentions or provide a complete list of bills to be announced.

1. Criminal justice

1.1 Police reform

1.1.1 Police reform white paper

In January 2026, the Home Office published the white paper 'From local to national: A new model for policing'. It set out plans for comprehensive reforms to policing in England and Wales, including:[1]

- reducing the number of police forces in England and Wales by merging them into larger regional forces

[1] Home Office, 'From local to national: A new model for policing', January 2026, CP 1489.

- establishing a new National Police Service to lead on serious and organised crime as well as counter-terrorism policing
- merging the National Crime Agency (NCA), College of Policing and National Police Chiefs' Council (NPCC) into the new National Police Service[2]
- scrapping police and crime commissioners in England and establishing new police and crime boards[3]

Various aspects of the proposed reforms would require legislation, with the white paper providing details on several areas in particular. Further information is set out below. In addition, some of the reforms mentioned in the white paper have already been legislated for. For example, the creation of a new offence of assault of a retail worker was included in the Crime and Policing Act 2026.[4]

When announcing the reforms in the House of Commons, Home Secretary Shabana Mahmood said that legislation would be introduced later in the year.[5] However, it is not clear which measures would be prioritised.

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[2] Further information on how these bodies currently operate can be found in the House of Lords Library briefing 'Policing in the UK: Governance, oversight and complaints' (14 January 2020), pp 5, 7 and 9.

[3] Further information on the current role of police and crime commissioner can also be found in the House of Lords Library briefing 'Policing in the UK: Governance, oversight and complaints' (14 January 2020), p 4.

[4] Crime and Policing Act 2026; and Home Office, 'From local to national: A new model for policing', January 2026, p 26, CP 1489.

[5] HC Hansard, 26 January 2026, col 616.

1.1.2 Creation of a National Police Service

One of the key reforms mentioned in the white paper is the proposed creation of a National Police Service (NPS). The government said the NPS would "replace the large number of organisations at the centre of policing with a single national police force".[6] Explaining that it planned to gradually migrate the full suite of national police operational functions into the NPS, the government said that the service would need to be "mature and ready" to avoid operational disruption.[7] The government said it expects this point to be reached early in the next parliament, and it would therefore introduce legislation enabling the change to take place at a future date. In the interim, the government committed to undertaking a programme to strengthen joint working.

1.1.3 Reforming the Independent Office for Police Conduct

The Independent Office for Police Conduct (IOPC) is the police complaints watchdog in England and Wales.[8] The government set out plans to reform various aspects of the IOPC in the white paper. For example, it said that to ensure that the IOPC's governance arrangements are in line with usual practice for government arms' length bodies it would legislate to introduce a separate statutory chair of the IOPC's board of directors.[9] It also said it would change

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[6] Home Office, 'From local to national: A new model for policing', January 2026, CP 1489, p 45.

[7] As above, pp 49–50.

[8] As above, p 70; and Independent Office for Police Conduct, 'About us', accessed 2 April 2026.

[9] Home Office, 'From local to national: A new model for policing', January 2026, CP 1489, p 71.

the legal test applying to the defence of the use of force in police misconduct cases from the civil law test to the criminal law test. This followed a rapid review of police accountability which recommended the government make the change via an amendment to the Police (Conduct) Regulations 2020.[10]

1.1.4 Improving vetting standards

Vetting looks to identify any information about an individual that could pose a risk to national security, public safety or to public confidence in the police.[11] All police officers and staff must be vetted to the required level for their role before being appointed. They must also have their vetting clearance renewed at least every 10 years. Each police force is responsible for vetting its own personnel; however, the College of Policing has published guidance to encourage consistency and minimum standards across England and Wales.[12]

Following the murder of Sarah Everard by serving police officer Wayne Couzens in 2021, concerns were raised about the effectiveness of police vetting.[13] The then Conservative government commissioned an inspection into police vetting by His Majesty's Inspectorate of Constabulary and Fire and Rescue Services (HMICFRS) and established the Angiolini Inquiry to examine Couzens' offending and other related issues.[14] Baroness Casey of Blackstock

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[10] Home Office and Ministry of Justice, 'Police accountability: Rapid review', 23 October 2025.

[11] House of Commons Library, 'Police standards: Vetting', 19 March 2026.

[12] College of Policing, 'Vetting code of practice', July 2023; and 'Vetting authorised professional practice', May 2025.

[13] BBC News, 'Sarah Everard murder: Wayne Couzens given whole-life sentence', 30 September 2021.

[14] HMICFRS, 'An inspection of vetting, misconduct, and misogyny in the police service', 2 November 2022; and The Angiolini Inquiry, 'About', last updated 2 December 2025.

(Crossbench) was also commissioned by the Metropolitan Police Service to review its standards of behaviour and internal culture.[15] All three of these pieces of work found significant faults with police vetting processes.[16]

In reaction to this criticism, the government has taken action to improve vetting processes. For example, in May 2025 the Police (Vetting) Regulations 2025 created a new statutory route to dismiss officers who fail to hold vetting clearance.

The white paper said the government would introduce further legislation in this area.[17] It outlined plans to introduce national mandatory vetting standards (to place vetting standards on a statutory footing) and create requirements for chief constables to suspend officers where they are under investigation for domestic abuse or sexual abuse.

1.1.5 Other measures

Home secretary's powers: Dismissal of chief constables

In January 2026, Craig Guildford, the chief constable of West Midlands Police, apologised to the House of Commons Home Affairs Committee for providing inaccurate evidence. The evidence had focused on the use of artificial intelligence in reports about the risk posed by Maccabi Tel Aviv fans attending a football match at Aston

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[15] Metropolitan Police Service, 'The Baroness Casey review', accessed 1 April 2026.

[16] His Majesty's Inspectorate of Constabulary and Fire and Rescue Services, 'An inspection of vetting, misconduct, and misogyny in the police service', November 2022; The Angiolini Inquiry, 'The Angiolini Inquiry: Part 1 report', February 2024, HC 530 of session 2023–24; and Baroness Casey Review, 'Final report', March 2023, pp 78–9.

[17] Home Office, 'From local to national: A new model for policing', January 2026, CP 1489, p 12.

Villa in November 2025.[18] Following this, the shadow home secretary, Chris Philp, called on Ms Mahmood to force Mr Guildford to resign using powers under section 40 of the Police Act 1996.[19]
Ms Mahmood said she did not have the explicit power to remove chief constables (apart from the Metropolitan Police commissioner) due to amendments made to the 1996 act by the Police Reform and Social Responsibility Act 2011.[20] However, she said that the government would introduce new legislation to establish an explicit power for the home secretary to dismiss chief constables in light of significant or persistent failings. The government confirmed its intention to reintroduce this power in its police reform white paper.[21]

Policing and crime boards: Standards

The government has said that it plans to abolish police and crime commissioners and transfer police governance in 2028 to strategic authority mayors and local council leaders through policing and crime boards.[22] Over time, these boards would then be adapted to provide governance for fewer and larger police forces.

The government has argued there is value in setting agreed expectations of how policing and crime boards would operate to ensure a greater level of consistency.[23] It said it would work with representative bodies to provide guidance and would also "drive

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[18] West Midlands Police, 'Letter to Karen Bradley, chair of the House of Commons Home Affairs Committee, ref evidence given to the committee', 12 January 2026.

[19] HC Hansard, 14 January 2026, col 954.

[20] HC Hansard, 14 January 2026, col 955.

[21] Home Office, 'From local to national: A new model for policing', January 2026, CP 1489, p 65.

[22] As above, p 33.

[23] As above, p 38.

improvement" by introducing legislation to allow the home secretary to set standards.

Police Covenant

The Police Covenant is a "pledge to do more as a nation to help those who serve this country and specifically to recognise the bravery, commitment, and sacrifices of those who work or have worked in policing".[24] It aims to ensure that members and former members of the police workforce in England and Wales are not disadvantaged as a result of working in policing.

The government has argued that the prevalence of post-traumatic stress disorder and other trauma-related mental health injuries in the police workforce has been well evidenced.[25] Its white paper set out measures aimed at prioritising wellbeing, such as strengthening requirements on government and forces under the covenant, including "if necessary through legislation".

1.2 Public order and hate crime legislation

The government has said that it plans to modernise legislation, such as the Public Order Act 1986, to ensure that police are clearer about the line between freedom of speech and criminality.[26] In its police reform white paper, the government argued that there had been "numerous examples in recent years of the police investigating crimes and making arrests following allegations of offensive behaviour online".[27] The government said that many people have felt that the

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[24] Home Office, 'Police Covenant', updated 26 March 2024.

[25] Home Office, 'From local to national: A new model for policing', January 2026, CP 1489, pp 81–2.

[26] As above, p 9.

[27] As above, p 28.

police's response to these alleged offences was disproportionate.

To address these concerns, in October 2025 the home secretary announced an independent review of public order and hate crime legislation.[28] The government said the review would consider the current hate crime law, examining whether existing legislation is effective and proportionate, and also look at the powers police have to manage protests.[29] In November 2025, the home secretary announced that Lord Macdonald of River Glaven KC (Crossbench), a former director of public prosecutions, had been appointed to lead the independent review.[30] The Home Office published the review's terms of reference in December 2025 and has said that it expects the final report by the end of May 2026.[31]

1.3 State threats legislation

The term 'state threats' encompasses actions by foreign governments that fall short of direct armed conflict, but go beyond typical statecraft and aim to harm or threaten the safety or interests of a nation.[32] In recent years, UK stakeholders who monitor such threats have reported a rise in the number of investigations and an increased threat posed by hostile state actors, particularly Iran, Russia and China.[33] In its 2024 general election manifesto, the government also

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[28] House of Commons, 'Written question: Public order and hate crime legislation review: Muslim Council of Britain (105786)', 19 January 2026.

[29] Home Office, 'Review of public order and hate crime legislation', 15 November 2025.

[30] As above.

[31] Home Office, 'Independent review of public order and hate crime legislation: Terms of reference', 8 December 2025; and HC Hansard, 23 March 2026, col 5.

[32] Counter Terrorism Policing, 'Counter Terrorism Policing's work with state threats', accessed 30 March 2026.

[33] HC Hansard, 4 March 2025, cols 195–6; and George Allison, 'Counter Terror highlights rising state threats, disinfo push', UK Defence Journal, 5 November 2025.

noted that threats from hostile states or state-sponsored groups were "on the rise".[34] However, it argued that the UK lacked a comprehensive framework to protect itself.

In December 2024, the government commissioned Jonathan Hall KC, the independent reviewer of terrorism legislation, to lead an independent review examining whether tools available in terrorism legislation could be emulated or adapted to address state-based security threats to the UK.[35] Mr Hall published his review on 19 May 2025.[36] He set out potential gaps in state threats legislation when compared to terrorism legislation and made a number of recommendations. For example, he recommended that statutory alert and liability threat notices should be available for use against foreign intelligence services or private entities acting as such services. He said this would be an equivalent to proscription under the Terrorism Act 2000, which makes it a criminal offence to support, or profess to support, a proscribed organisation as designated by the home secretary.[37]

Following the publication of Mr Hall's review, then Home Secretary Yvette Cooper told the House of Commons in May 2025 that the government was committed to taking forward his recommendations.[38] She said the government would "draw up new

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[34] Labour Party, 'Labour Party manifesto 2024', June 2024, p 15.

[35] Independent Reviewer of Terrorism and State Threat Legislation, 'Legislation to address state-based security threats to the United Kingdom', 19 May 2025.

[36] As above.

[37] Under the Terrorism Act 2000, the home secretary may proscribe an organisation if they believe it is concerned in terrorism and it is proportionate for them to do so. Once an organisation had been proscribed it is a criminal offence to demonstrate support for it. For further information see: Home Office, 'Proscribed terrorist groups or organisations', updated 28 January 2026.

[38] HC Hansard, 19 May 2025, cols 760–1.

powers, modelled on counter-terrorism powers, in a series of areas to tackle state threats". Ms Cooper specifically said there would be a new power of proscription to cover state threats which would be "stronger" than powers currently included in the National Security Act 2023 and would include "new criminal offences for individuals who invite support for or promote the group in question".

The government reiterated its commitment to taking forward Mr Hall's recommendations and drawing up new powers in its June 2025 national security strategy.[39] More recently, the government confirmed both in answer to a parliamentary question and in response to an article in the Times that it was preparing legislation to proscribe hostile state agencies, including Iran's Islamic Revolutionary Guard Corps.[40] It has since also confirmed the legislation will allow police and prosecutors to investigate and prosecute individuals acting on behalf of services or groups subject to the proscription-like power, even if unknowingly, under the 2023 act.[41] Those convicted could then face up to 14 years in prison.

1.4 Terrorism legislation: Extreme violence

The government, police and international partners have raised concerns about a growing number of violence-fixated individuals and young people who have been drawn into extreme violence and

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[39] HM Government, 'National security strategy 2025: Security for the British people in a dangerous world', June 2025, CP 1338, p 25.

[40] House of Commons, 'Written question: Islamic Revolutionary Guard Corps (109844)', 5 February 2026; and Matt Dathan et al, 'Britain to ban Iran's revolutionary guards', Times (£), 29 January 2026.

[41] Matt Dathan et al, 'Terror law to treat Iranian proxies as foreign spies', Times (£), 5 May 2026.

radicalisation.[42] The Southport attack in 2024, where a teenager entered a dance workshop and killed three young girls and attempted to kill 10 others, including eight children, has been highlighted as an example.[43] The Crown Prosecution Service (CPS) said that the offender, who was 17 at the time of the attack and has since been sentenced to life imprisonment, had made a "planned and premeditated attempt to commit indiscriminate mass murder". However, the police and CPS determined that his actions did not meet the definition of terrorism set out in the Terrorism Act 2000 because there was no evidence that his purpose was to advance a political, religious, racial or ideological cause.[44]

Following this case and wider concerns about the number of violence-fixated individuals, the government asked Mr Hall to examine the legal framework around terrorism and the powers available to tackle attacks of extreme violence where there is no clear underlying ideology.[45] Mr Hall published his report in March 2025.[46] He concluded that the definition of terrorism was "already wide and should not be changed any further". However, he recommended that the government should consider creating a new offence, adapted from terrorism legislation, to deal with non-terrorist mass casualty attack planning. The government has accepted this recommendation

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[42] House of Commons, 'Written statement: Terrorism legislation review (HCWS521)', 13 March 2025.

[43] Crown Prosecution Service, 'Teenager jailed for killing three children at a dance class and trying to kill ten others', 23 January 2025.

[44] House of Commons, 'Written statement: Terrorism legislation review (HCWS521)', 13 March 2025.

[45] HC Hansard, 21 January 2025, cols 875–6.

[46] Jonathan Hall KC, 'Independent review on classification of extreme violence used in Southport Attack on 29 July 2024', 13 March 2025.

and said it would "fix the legislation to close the gaps identified".[47] Ms Mahmood confirmed the government's intention in her statement to the House of Commons about the publication of phase one of the inquiry into the Southport attack, stating it would be taken forward as soon as parliamentary time allowed.[48]

Within his phase one report, the chair of the inquiry into the Southport attack, Sir Adrian Fulford, recommended that legislation and guidance on how police respond to children and young people who present a risk of serious harm to others should be reviewed.[49] In her statement, Ms Mahmood said that the government would respond to the recommendations made by the summer.[50] Sir Adrian also said that phase two of the Southport Inquiry would consider if further legislative changes are required to allow mental health clinicians to assess children and young people who are isolated from professional support and may pose a risk of violence, particularly where powers under current legislation do not permit assessment or detention.[51]

1.5 Violence against women and girls

In December 2025, the government published a new strategy for tackling violence against women and girls.[52] An action plan accompanying the strategy set out commitments to review existing

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[47] House of Commons, 'Written statement: Terrorism legislation review (HCWS521)', 13 March 2025.

[48] HC Hansard, 13 April 2026, col 583; and Southport Inquiry, 'Report', accessed 15 April 2026.

[49] Southport Inquiry, 'The Southport Inquiry report: Volume 2', 13 April 2026, p 467.

[50] HC Hansard, 13 April 2026, col 582.

[51] Southport Inquiry, 'The Southport Inquiry report: Volume 2', 13 April 2026, p 473.

[52] Home Office, 'Freedom from violence and abuse: A cross-government strategy to build a safer society for women and girls', updated 17 April 2026.

legislation as well as to introduce new measures.[53] The government has not yet taken forward all of these commitments.

Within its action plan, the government said it would review the legal framework of domestic abuse to ensure it captures the experience of adolescents.[54] It said this would include reviewing the age limit in the Domestic Abuse Act 2021, as under current legislation it is considered domestic abuse only if both the victim and perpetrator are aged 16 or over. The government also said it would update its statutory guidance on domestic abuse to include bespoke information on teenage relationship abuse.

In addition, the government said it would conduct a review of stalking legislation to "determine whether and how the law needs to change to improve identification and management of stalking behaviours within the criminal justice system".[55] In October 2025 the government said it had appointed Richard Wright KC to conduct this review.[56] It also published the terms of reference, which stated that the full review, including any recommendations, must be submitted by the end of March 2026.[57] A press release published by Mr Wright's chambers on 1 April 2026 said that he had completed his review and reported his findings and recommendations to the Home Office.[58] However, these have not yet been made publicly available.

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[53] Home Office, 'Freedom from violence and abuse volume 2: Action plan', updated 17 April 2026.

[54] As above.

[55] As above.

[56] Home Office, 'Expert KC to lead urgent independent review of stalking laws', 22 October 2025.

[57] Home Office, 'Stalking legislation review: Terms of reference', updated 31 March 2026.

[58] Park Square Barristers, 'Richard Wright KC submits independent review in to the effectiveness of current stalking legislation to the parliamentary under-secretary of state for safeguarding and violence against women and girls', 1 April 2026.

1.6 Grooming gangs: Collection of ethnicity data

In early 2025, the government asked Baroness Casey to undertake a rapid national audit of the nature, scale and characteristics of gang-based exploitation.[59] The then home secretary, Yvette Cooper, said she had tasked Baroness Casey to look at the issue of ethnicity and the cultural and social drivers for the type of offending.[60]

Baroness Casey published her 'National audit on group-based child sexual exploitation and abuse' in June 2025. She made 12 recommendations aimed at understanding and tackling group-based child sexual exploitation.

The government accepted all her recommendations and has implemented or begun to implement several of them.[61] One of the recommendations called on the government to make the collection of ethnicity and nationality data for all suspects in child sexual abuse and criminal exploitation cases mandatory. In its violence against women and girls strategy, the government said it intended to legislate on this issue in the future.[62] It also noted that Ms Cooper had written to all chief constables in July 2025 to set out the expectation that ethnicity data of grooming gangs should be collected in every case. The government said it would continue to work with the child sexual exploitation taskforce and police forces to improve the collection of data.

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[59] HC Hansard, 16 January 2025, cols 561–2.

[60] HC Hansard, 16 June 2025, col 25.

[61] Home Office, 'Government response to the national audit on group-based child sexual exploitation and abuse report', updated 15 January 2026.

[62] Home Office, 'Freedom from violence and abuse: A cross-government strategy to build a safer society for women and girls', updated 17 April 2026.

1.7 Facial recognition technology

In December 2025, the government launched a consultation to help inform the development of a new legal framework for the use of facial recognition, biometrics and similar technologies by law enforcement.[63] It argued that the established legal basis for using such technologies was "derived from a patchwork of common law, data protection, and human rights legislation".[64] The government said it intended to ensure that the law keeps pace with future technological developments. It also said it wished to provide clear, consistent rules that the public can easily understand and the police can rely on. The consultation closed in February 2026. The government has yet to publish its response.

1.8 Licensing for the sale of knives

In October 2024, then Home Secretary Yvette Cooper commissioned Commander Stephen Clayman, the NPCC's lead for knife crime, to conduct an independent review into the online sale and delivery of knives.[65]

Commander Clayman's review was published in February 2025 and made a number of recommendations.[66] The government said it immediately accepted the recommendations on stronger age verification for online sales, delivery of knives and retailers reporting

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[63] Home Office, 'Closed consultation: Legal framework for using facial recognition in law enforcement', 4 December 2025

[64] Home Office, 'New legal framework for law enforcement use of biometrics, facial recognition and similar technologies: Government consultation', 4 December 2025, p 4.

[65] Home Office, 'Licensing for the sale of knives: Government consultation', 16 December 2025, p 5.

[66] National Police Chiefs' Council, 'Independent end-to-end review of online knife sales', 31 January 2025.

bulk purchases of knives online, and introduced legislative provisions in the Crime and Policing Act 2026.[67]

The government noted that one of the review's other recommendations concerned the introduction of a registration scheme for sellers of knives.[68] The recommendation called for various conditions to be applied through such a scheme, including that details of the buyer are recorded, retained and made available to law enforcement upon request. It also suggested measures to control the importation of knives from overseas. The government launched a consultation on the introduction of such a registration scheme in December 2025.[69] The consultation closed in February 2026, but the government has not yet published its response.

1.9 Fraud

1.9.1 Fraud and disclosure

In 2023, the previous Conservative government launched an independent review into disclosure (the process of the prosecution passing information gathered during an investigation to the defence) and fraud offences.[70] The review considered how the disclosure regime was working in the digital age and whether fraud law "meets the challenges of modern offending, including whether the penalties are proportionate to the impact of the crime". Jonathan Fisher KC chaired the review across two stages, covering the disclosure regime

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[67] Home Office, 'Licensing for the sale of knives: Government consultation', 16 December 2025, p 5.

[68] As above.

[69] Home Office, 'Closed consultation: Licensing for knife sales', 16 December 2025.

[70] Home Office, 'Independent review of disclosure and fraud offences launched', 12 October 2023.

and fraud offences separately.

The part of the review looking at disclosure was published in March 2025.[71] Mr Fisher highlighted various issues, including the development of technology in the years since the creation of the current rules and the pressure this has put on different aspects of the criminal justice system. Difficulties with the real-world application of the current rules by law enforcement officers were also noted. To address these issues and others, Mr Fisher recommended amendments to the Criminal Procedure Rules and the Criminal Procedure and Investigations Act 1996. The government has not yet said whether it would accept these recommendations, stating that it would publish its full response to part one of the review by 20 May 2026.[72] It said the response would include consideration of any links to recommendations made in part two of Sir Brian Leveson's independent review of the criminal courts.[73]

The government received the second part of Jonathan Fisher KC's review, which focused on fraud, in December 2025, but it has not yet been published.[74]

1.9.2 Fraudulent advertising

In its 'Fraud strategy 2026–2029', the government argued that while online platforms have driven the digital economy and innovation, "vulnerabilities have enabled criminals to target victims at alarming

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[71] Home Office, 'Disclosure in the digital age: Independent review of disclosure and fraud offences', updated 6 June 2025.

[72] House of Commons, 'Written statement: Update on the government response to part one of the independent review of disclosure and fraud offences (HCWS1272)', 26 January 2026.

[73] As above; and Ministry of Justice, 'Independent review of the criminal courts: Part two', 4 February 2026.

[74] Home Office, 'Independent review of disclosure and fraud offences: Second report submitted', 26 January 2026.

scale". It said that some of the highest volume and harm frauds occur through fraudulent content and fraudulent adverts.[75] To address this, the government explained that the Home Office and the Department for Culture, Media and Sport (DCMS) launched a new industry partnership to address fraudulent advertising. However, the government has said that if this partnership and market incentives alone "remain insufficient to drive improvements", it would take legislative action within this parliament.

2. Immigration and asylum

2.1 Policy documents

The government has said that it wants to reduce net migration in the UK and restore order to the asylum system.[76] It has set out planned reforms to the immigration and asylum systems in pursuit of these aims. The majority of these proposals are outlined in two policy documents:

- a white paper entitled 'Restoring control over the immigration system' published in May 2025
- a statement on the government's asylum and returns policy entitled 'Restoring order and control' published in November 2025

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[75] UK Government, 'Fraud strategy 2026–2029: Disrupting crime, supporting economic resilience and delivering justice', March 2026, CP 1523, pp 23 and 30.

[76] Labour Party, 'Labour Party manifesto 2024', June 2024, pp 17 and 41; and HM Government, 'Plan for change: Milestones for mission-led government', 5 December 2024, CP 1210, pp 16–17.

Many of the measures would not require primary legislation and could be made through changes to the immigration rules.[77] However, others require legislation and the government addressed some of these specifically within the policy documents. These are detailed below.

2.2 Asylum appeals

Concerns have been raised about the number of appeals against asylum decisions in recent years. In January 2026, Ms Mahmood said that the caseload for asylum appeals had increased from 7,000 in early 2023 to more than 51,000 at the end of March 2025.[78] The government has said that court delays over appeals are now the "biggest cause of pressure in the asylum accommodation system" and are "costing the taxpayer billions of pounds each year".[79]

In August 2025, the government announced its intention to make changes to the system of asylum appeals.[80] It said that a new independent body made up of independent professional adjudicators would be established with the aim of hearing cases more quickly. Commenting further, the government said:

> The new body will be fully independent of government with safeguards to ensure high standards and is expected to use the

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[77] The immigration rules set out most of the practical details about who is allowed to come to the UK and the eligibility criteria and conditions. The rules are statements of policy rather than secondary legislation and can be changed by the home secretary by publishing a statement of changes. Parliament has a limited role in overseeing changes to the rules. Further information on the immigration rules and Parliament's role in scrutinising them can be found in the House of Commons Library briefing 'The immigration rules' (24 July 2024).

[78] Home Office, 'Letter to Andy Slaughter, chair of the House of Commons Justice Committee, ref asylum and returns policy statement', 13 January 2026.

[79] Home Office, 'Tribunal system reforms to speed up asylum decisions', 24 August 2025.

[80] As above.

> expertise of independent professionally trained adjudicators focusing particularly on asylum appeals, and will allow capacity to be surged so cases can be cleared. It will have statutory powers to prioritise cases from those in asylum accommodation and foreign national offenders.[81]

The government confirmed its plans to create this new appeals body in its statement on asylum and returns policy.[82] In March 2026, the government launched a call for evidence on the creation of the new body to seek views, evidence and practical insights on how it should be designed.[83] This call for evidence had been extended and closed on 6 May 2026.

The government also set out several other changes to the appeals system in its policy statement on asylum and returns. It said it would legislate to:[84]

- accelerate appeals for removable high-harm cases, foreign national offenders, and others who are detained and readily removable, and prioritise those appeals in the public interest
- enable an expedited appeal for first-time late claims where someone is being removed but has not previously made a claim

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[81] As above.

[82] HM Government, 'Restoring order and control: A statement on the government's asylum and returns policy', November 2025, p 22.

[83] Home Office et al, 'Asylum: New independent appeals body', updated 20 April 2026.

[84] HM Government, 'Restoring order and control: A statement on the government's asylum and returns policy', November 2025, pp 22–3.

- stop private or family life rights accrued after losing an appeal from overriding removal, other than in the most exceptional circumstances

2.3 Human rights: Article 8 of the European Convention on Human Rights

Article 8 of the European Convention on Human Rights (ECHR) sets out the right to respect for family and private life.[85] The government has argued that article 8 rights are currently leading to "high numbers of arrivals from those who would not otherwise have the right to live in the UK".[86] It said that over half of family and private life applications made from within the UK are granted leave on the basis that refusing them would be a breach of article 8, even though they do not meet the minimum income and English language requirements for leave. The government also said that article 8 rights are being used to stop the removal of those living in the UK illegally.

The government has argued that these issues are having "a significant impact" on its ability to enforce immigration rules and control migration.[87] It therefore said it planned to limit the application of article 8 on asylum and immigration cases in three ways:

- **Strengthening the public interest test**: The government has stated that article 8 is a qualified right which means that interferences with it can be justified where it is proportionate to the public interest. It said it would legislate to set out to Home Office decision

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[85] European Court of Human Rights, 'European Convention on Human Rights', accessed 23 April 2026.

[86] HM Government, 'Restoring order and control: A statement on the government's asylum and returns policy', November 2025, p 24.

[87] As above, pp 24–5.

makers and the courts how to "properly balance the public interest against individual rights". This intends to narrow the circumstances in which an individual's article 8 rights would outweigh the public interest in removing them.

- **Defining family**: The government said it would set out in primary legislation a definition of family life. It said this definition should not normally go beyond immediate family members, unless for example other family members are acting in a parental capacity or there is a different exceptionally close link. The government argued the change would set a clear framing for Home Office decision makers and the courts.
- **Defining how people can make article 8 applications**: People seeking to come to the UK can make article 8 claims from abroad. The government said that for individuals who want to join a family member, where they do not meet the requirements of the family immigration rules an application will have to be made by their UK-based family member. The government said this was designed to prevent the "creeping extension of article 8 rights to those living overseas". It also said the government would prescribe how article 8 claims can be made in-country. It argued this would prevent migrants from frustrating removal.

2.4 Modern slavery

The government has argued there is currently scope for people to misuse protections meant for those who have been a victim of modern slavery to block their removal from the UK.[88] It said that between January and September 2022 more than two in five people detained for removal were then referred as potential victims of modern slavery. The government also noted that repeated or late presentation of information can significantly increase the time taken to remove individuals with no right to remain in the UK, "even if they are not and have never been" a victim of modern slavery.

The government has set out several proposed reforms in this area, some of which have already been implemented. In particular, it said it would introduce new legislation on modern slavery "clarifying our obligations and enabling us to address potential misuse while maintaining essential protections".[89]

2.5 Levy on international student fees

In its May 2025 immigration white paper, the government said it would explore introducing a levy on higher education provider income from international students, with this to be reinvested into the higher education and skills system.[90]

The government confirmed the creation of the levy in its November 2025 budget.[91] It said it would establish a levy of £925 per student

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[88] HM Government, 'Restoring order and control: A statement on the government's asylum and returns policy', November 2025, p 26.

[89] As above.

[90] HM Government, 'Restoring control over the immigration system', May 2025, CP 1326, p 36.

[91] HM Treasury, 'Budget 2025', updated 28 November 2025.

per year of study, starting in August 2028 for the 2028–29 academic year. All providers would be given an allowance so that the charge would not apply to their first 220 international students per year.

2.6 Changes to earned settlement

Earned settlement refers to a person's right to live in the UK permanently without any immigration restrictions.[92] It is also known as indefinite leave to remain or permanent residence.[93] Under the current system, settlement is primarily qualified for based on length of time spent in the UK alongside a 'knowledge of life test'.[94]

The government has argued that "these criteria alone do not reflect our strongly held belief that people should contribute to the economy and society before gaining settled status".[95] It said it would reform the current rules through an expansion of the principle behind the points-based system that "individuals should earn their right to privileged immigration status in the UK through the long-term contribution they bring". The government said this would see an increase in the standard qualifying period from five to 10 years, with shorter pathways available in certain cases. This change would require primary legislation.[96]

Following a commitment in its white paper, the government ran a consultation on these proposals from November 2025 to

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[92] Home Office, 'Closed consultation: Earned settlement', 20 November 2025.

[93] House of Commons Library, 'Changes to UK visa and settlement rules after the 2025 immigration white paper', 20 March 2026.

[94] HM Government, 'Restoring control over the immigration system', May 2025, p 69.

[95] As above.

[96] House of Commons Library, 'Changes to UK visa and settlement rules after the 2025 immigration white paper', 20 March 2026.

February 2026.[97] However, it has not yet reported on the findings of this consultation. The House of Commons Home Affairs Committee has considered the proposed reforms and published its findings in March 2026.[98] The committee expressed concerns about the impact the reforms could have on care workers and children.

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[97] Home Office, 'Closed consultation: Earned settlement', 20 November 2025.

[98] House of Commons Home Affairs Committee, 'Earned settlement: Examining the government's proposed reforms', 13 March 2026, HC 1409 of session 2024–26.

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